

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-24

S.P.F. LOGISTICS, INC.
Complainant,

v.

HAPAG LLOYD AG
Respondent.

VERIFIED ANSWER

Respondent Hapag Lloyd AG (“Respondent” or “Hapag”) hereby provides this Verified Answer to Complainant S.P.F. Logistics, Inc.’s (“Complainant” or “SPF”), verified Complaint alleging violations of the Shipping Act of 1984, as amended, 46 U.S.C. §40101, et. seq. (the “Act”).

I. THE COMPLAINANT

1. Respondent does not have sufficient information to admit or deny the allegations in this paragraph.

II. THE RESPONDENT

2. Admit.
3. Admit that Hapag-Lloyd (America) LLC is a Delaware limited liability company, the U.S. general agent for Hapag, and has an office in Long Beach, CA. Deny that Hapag-Lloyd (America) LLC’s principal place of business is 399 Hoes Lane, Piscataway, NJ.
4. Admit.

5. Admit the first sentence and the portion of the second sentence relating to Thomas Engel. Deny the portion of the second sentence relating to Uffe Ostergaard.

III. JURISDICTION AND LEGAL AUTHORITY

6. Denied.
7. Admit.
8. Admit this paragraph describes the Complaint accurately, but deny the substance of the allegations.

IV. FACTUAL ALLEGATIONS

9. Admit.
10. Admit.
11. Admit.
12. Admit.
13. Admit.
14. Admit.
15. Respondent lacks sufficient information to admit or deny.
16. Admit the first sentence. Respondent lacks sufficient information to admit or deny the remaining allegations in this paragraph.
17. Denied.
18. Denied as to the allegation that Hapag-Lloyd would purposefully not respond to email inquiries.
19. Denied as to the allegation in the first sentence that Respondent would “often” reply that only dual moves or empty returns were allowed. Admit the second and third sentences accurately describe the common understanding of a “dual” transaction, but deny “dual” transactions are required by Respondent. Admit the fourth sentence.
20. Admit the first, third and fourth sentences. Respondent lacks sufficient information to admit or deny the second sentence.

21. Respondent lacks sufficient information to admit or deny the first sentence. Denied as to the allegation that Hapag-Lloyd had a “continuous lack of ... empty return locations.” Respondent lacks sufficient information to admit or deny allegations regarding container accumulation and empties remaining on specialized SPF owned chassis.
22. Respondent lacks sufficient information to admit or deny.
23. Respondent lacks sufficient information to admit or deny.
24. Deny that Respondent’s past actions caused stacked containers. Respondent lacks sufficient information to admit or deny the remaining allegations.
25. Deny the first sentence. Admit sub-parts 1, 2 and 3 of the second sentence. Respondent lacks sufficient information to admit or deny sub-parts 4, 5 and 6 of the second sentence. Deny the remaining allegations in this paragraph.
26. Denied.
27. Denied.
28. Exhibit A speaks for itself. Denied as to the remaining allegations in this paragraph.
29. Admit.
30. Denied.
31. Denied.
32. Admit.

V. CAUSATION - VIOLATIONS OF THE SHIPPING ACT
AND INJURY TO COMPLAINANT

33. This paragraph speaks for itself.
34. Admit.
35. 46 USC §41102(c) speaks for itself.

- 36. This paragraph includes legal conclusion to which no response is required. 46 C.F.R. §545.5(c)(ii) and 85 FR 29638, 29650 speak for themselves.
- 37. 46 C.F.R. §545.5 speaks for itself.
- 38. Denied, to the extent the allegations in this paragraph relate to Respondent.
- 39. The allegations in this paragraph are legal conclusions to which no response is required. To the extent a response is required, Respondent denies the allegations in this paragraph.
- 40. The allegations in this paragraph are legal conclusions to which no response is required. To the extent a response is required, Respondent denies the allegations in this paragraph.

VI. DAMAGES

- 41. The allegations in this paragraph are legal conclusions to which no response is required. To the extent a response is required, Respondent denies the allegations in this paragraph.
- 42. The allegations in this paragraph are legal conclusions that are not relevant to the current proceeding and therefore no response is required. To the extent a response is required, Respondent denies the allegations in this paragraph.
- 43. Admit the first sentence. Respondent lacks sufficient information to admit or deny the second sentence. The third sentence does not require a response.

AFFIRMATIVE DEFENSES

1. The Commission lacks subject matter jurisdiction.
2. The Complaint fails to state a claim upon which relief may be granted in that any failure to permit the return of empty containers was due to the act(s) or omission(s) of the marine terminal operator, the motor carrier, and/or the cargo interest(s).
3. Respondent's conduct was reasonable in light of the totality of the circumstances.
4. Complainant failed to mitigate its damages.

Respectfully submitted,



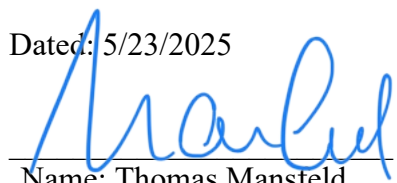
Wayne Rohde
Rachel Schwartz
COZEN O'CONNOR
2001 M. Street, NW
Washington, DC 20036
(202) 463-2507
wrohde@cozen.com
rschwartz@cozen.com

VERIFICATION

I Thomas Mansfeld hereby verify as follows:

1. I am the General Counsel of Hapag-Lloyd AG
2. I am authorized to make this verification on behalf of Hapag-Lloyd AG
3. I declare under penalty of perjury under the laws of the United States that the foregoing answer is true and correct to the best of my knowledge, information, and belief.

Dated: 5/23/2025



Name: Thomas Mansfeld

Title: General Counsel

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd day of May, 2025, a true and correct copy of the foregoing Respondent Hapag-Lloyd AG's Answer was served via electronic mail on :

Theodore H. Adkinson (tha@tradeandcargo.com)

Cameron W. Roberts (cwr@tradeandcargo.com)

Counsel for Complainant

A handwritten signature in black ink, appearing to read "Wayne R. Rohde", written in a cursive style.

Wayne R. Rohde